

HOUSE No. 5306

The Commonwealth of Massachusetts

HOUSE OF REPRESENTATIVES, March 30, 2026.

The committee on Consumer Protection and Professional Licensure, to whom was referred the petition (accompanied by bill, House, No. 4597) of Paul McMurtry relative to licenses for off premises retail of alcoholic beverages located near other off premises licenses, reports recommending that the accompanying bill (House, No. 5306) ought to pass [Representative McKenna of Sutton dissents].

For the committee,

TACKEY CHAN.

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In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to ensure alcoholic beverages licensing economic opportunity and geographic equity.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 138 of the General Laws, as appearing in the 2024 Official Edition,
2 is hereby amended by inserting after section 16D the following new section:-

3 Section 16E. No new premises located within a radius of five hundred feet of a premises
4 licensed for the sale of alcoholic beverages not to be drunk on premises may be licensed for the
5 sale of alcoholic beverages not be drunk on premises unless the local licensing authority
6 determines in writing and after a hearing that the new premises are not detrimental to public
7 health, safety, and the general welfare of the community; provided, however, this provision shall
8 not apply to the transfer of a license from premises located within said distance to other premises
9 located therein, if it is transferred to a location not less remote from the existing licensee. Any
10 applicant who has been denied a license under this section shall have the right to an appeal under
11 section 67.

12 SECTION 2. This act shall apply to new licenses issued on or after January 1, 2027.